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Case Number: 24TRCV03190 Hearing Date: June 30, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

LUCY GARBER

;

Plaintiff,

vs.

basco manufacturing co.

, et al.;

Defendants.

Case

No.:

24TRCV03190

Hearing

Date:

June
30, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT AND PROPOSED CROSS-COMPLAINANT BASCO
MANUFACTURING CO.'S MOTION FOR LEAVE TO FILE CROSS-COMPLAINT

MOVING PARTY: Defendant and Proposed Cross-Complainant,
Basco Manufacturing Co.

RESPONDING

PARTY: Plaintiff, Lucy Garber

(1) Defendant and Proposed Cross-Complainant Basco
Manufacturing Co.'s Motion for Leave to File Cross-Complaint is GRANTED
pursuant to Code of Civil Procedure sections 428.10 and 428.50.

The Court considers the moving
papers filed on April 20, 2026, the opposition brief filed on June 16, 2026,
and the reply brief filed on June 23, 2026.

BACKGROUND

Factual Background

On September 24,
2024, plaintiff Lucy Garber ("Plaintiff") filed the Complaint against defendants
Basco Manufacturing Co. ("Basco"), Lowe's Home Centers, LLC, and
DOES 1 through 50. The Complaint includes two causes of action for (1) Products Liability
and (2) General Negligence.

On April 25, 2025,

Plaintiff provided responses to Basco's Special Interrogatories, Set One, which indicated that "the installation of the subject shower door was completed by Carlos Bautista and/or Bautista Construction (hereinafter collectively referred to as 'The Contractor Parties') on or about April 9, 2023." (Declaration of Candice S. Nam ("Nam Decl."), ¶¶ 5-6, Exh. B.)

On July 29, 2025, Plaintiff submitted her initial statement of damages, in which she requested a total of \$73,500. (Nam Decl., ¶ 9.)

During the week of August 28, 2025, Basco's counsel reached out to Plaintiff's counsel to ascertain whether Plaintiff planned to include the Contractor Parties as defendants. (Supplemental Declaration of Candice S. Nam ("Suppl. Nam Decl."), Exh. F.) On August 28, 2025, Basco's counsel followed up on this inquiry, stating that "adding the installer may help in finding a way to resolve this matter." (Suppl. Nam Decl., Exh. F.) However, Plaintiff's counsel rejected this proposal. (Suppl. Nam Decl., ¶ 3.)

On February 25, 2026, Plaintiff served an updated statement of damages, which asserted a claim for a total of \$4,810,000.00. (Nam Decl., ¶ 10.)

LEGAL STANDARD

Code of Civil Procedure section 428.10, subdivision (b), provides, as follows: "A party against whom a cause of action has been asserted in a complaint or cross-complaint may file a cross-complaint setting forth either or both of the following: ... Any cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him."

Code of Civil Procedure section 428.50 provides, as follows: "(a) A party shall file a cross-complaint against any of the parties who filed the complaint or cross-complaint against

him or her before or at the same time as the answer to the complaint or cross-complaint. (b) Any other cross-complaint may be filed at any time before the court has set a date for trial. (c) A party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b). Leave may be granted in the interest of justice at any time during the course of the action.”

A cross-complaint is compulsory if it is transactionally related to the subject matter of the complaint. (Code Civ. Proc., § 426.10.) “To be considered a compulsory cross-complaint, a related cause of action must have existed at the time of the service of [the] answer to [the] complaint.”

(Crocker Nat. Bank v. Emerald (1990) 221 Cal.App.3d 852, 864 (Crocker).) The late filing of a motion for leave to file a compulsory cross-complaint, “absent some evidence of bad faith is insufficient evidence to support denial of the motion.” (Silver Organizations Ltd. v. Frank (1990) 217 Cal.App.3d 94, 101.)

“Permission to file a permissive cross-complaint is solely within the trial court’s discretion.” (Crocker, supra, 221 Cal.App.3d at p. 864.)

DISCUSSION

Basco’s proposed cross-complaint is compulsory. The cross-complaint arises from the same “transaction, occurrence, or series of transactions or occurrences” alleged in Plaintiff’s Complaint, specifically regarding the shower door that shattered unexpectedly when Plaintiff attempted to exit the shower. (Motion, pp. 4:7-10, 23-26; Reply, pp. 2:27-3:1.)

The proposed cross-complaint asserts that while Basco manufactured the shower door, Carlos Bautista and/or Bautista Construction (collectively “the Contractor Parties”) installed it, potentially in an incorrect manner. (Motion, pp. 4:26-5:5.) Basco emphasizes that the installation instructions for the shower door “clearly warn the installer that the failure to follow certain instructions could lead to the breaking or shattering of the shower door glass. Thus, Plaintiff’s claim that the shower door shattered without provocation necessarily involves the installation of the

shower door because improper installation of the door can lead to the shattering of the glass.” (Reply, p. 3:12-16.) Therefore, it follows that the installer may be liable for the glass shattering and should be included in this litigation. Basco intends to assert claims against the Contractor Parties and ROES 1 through 50 for the following: (1) Total Equitable Indemnity, (2) Comparative Indemnity, (3) Apportionment, (4) Contribution, and (5) Declaratory Relief. (Nam Decl., Exh. A.)

Under Code of Civil Procedure section 426.50, courts must liberally grant leave to file a cross-complaint where a party acted in good faith and denial would result in forfeiture of claims. The burden is on the opposing party to demonstrate a “strong showing of bad faith” to justify denial. (Foot’s Transfer & Storage Co. v. Superior Court (1980) 114 Cal.App.3d 897, 902). In her opposition, Plaintiff asserts that Basco “has not only failed to show good cause for waiting more than a year to seek leave to amend but has acted in bad faith.” (Opp., p. 4:21-22.) The Court disagrees.

Basco partially elucidates the reasons for the delay in filing this motion. On April 25, 2025, Plaintiff provided responses to Basco’s Special Interrogatories, Set One, which indicated that the Contractor Parties had completed the installation of the shower door on or about April 9, 2023. (Nam Decl., ¶¶ 5-6, Exh. B.) Plaintiff asserts that on May 27, 2025, Basco conveyed its intention to file a cross-complaint with the Court. (Opp., p. 3:6-8.)

It was not until the week of August 28, 2025, that Basco’s counsel reached out to Plaintiff’s counsel to ascertain whether Plaintiff planned to include the Contractor Parties as defendants. (Suppl. Nam Decl., Exh. F.) On August 28, 2025, Basco’s counsel followed up on this inquiry, stating that “adding the installer may help in finding a way to resolve this matter.” (Suppl. Nam Decl., Exh. F.) However, Plaintiff’s counsel rejected this proposal. (Suppl. Nam Decl., ¶ 3.)

Consequently, the Court concludes that Basco has not adequately explained the nearly year-long delay since it became aware of the identities of the Contractor Parties, the

eleven-month gap since it made its intention to include a third party, or the seven-month period since the last communication regarding this matter. Rather, it appears that Basco is seeking to include the Contractor Parties only after Plaintiff served an updated statement of damages requesting a total of \$4,810,000.00 on February 25, 2026.

(Nam Decl., ¶ 10.) This updated statement appears to have reminded Basco to include the Contractor Parties. Although Plaintiff argues that this constitutes evidence of bad faith, the Court does not find the argument compelling.

Plaintiff compares this situation to *Crocker Nat. Bank v. Emerald* (1990) 221 Cal.App.3d 852, where “the court denied leave to file a cross-complaint [after] the defendant provided no explanation for the delay in seeking permission.” (Opp., pp. 4:26-5:1.) However, in that instance, the defendant sought leave to file a cross-complaint seven years after the commencement of litigation, five years after a demurrer was sustained without leave to amend, and only five months prior to the trial date. (*Crocker Nat. Bank v. Emerald* (1990) 221 Cal.App.3d 852, 864.) Thus, the lack of an explanation for such an extensive delay was particularly egregious. In contrast, in the current case, Basco has waited almost one year and has provided a partial explanation for its delay.

Additionally, Plaintiff compares this case to *County of Los Angeles v. Quinn Emanuel Urquhart & Sullivan, LLP* (2025) 115 Cal.App.5th 489, in which “the Court of Appeal held that even though the cross-complaint was compulsory, the trial court properly denied the motion for leave because there was substantial evidence Quinn’s delay in seeking leave to file constituted bad faith.” (Opp., p. 5:16-19.) In that instance, Quinn filed a motion for leave to file a compulsory cross-complaint after the trial court had granted Plaintiff’s motion for summary judgment and shortly before judgment was entered against them. (*County of Los Angeles v. Quinn Emanuel Urquhart & Sullivan, LLP* (2025) 115 Cal.App.5th 489, 500-501 (County of Los Angeles).) Furthermore, Quinn submitted this motion slightly over one year after initially expressing their intention to do so. (Id. at p. 503, fn. 5.) The trial court denied the motion, noting that Quinn had “‘acted consciously not to pursue these claims or to otherwise act in a manner that would have preserved its rights prior to the entry of judgment,’ and that ‘to the extent there is any potential forfeiture it was [Quinn’s] deliberate decision that

caused it.' " (Id.at p. 502.) The Court of Appeal affirmed this ruling. (Id. at pp. 512-513.) This scenario is distinct from that of Basco, as Basco did not submit a motion following the entry of judgment in an effort to revive the case after receiving an unfavorable ruling.

In conclusion, while Basco has taken some time to file this motion, the Court does not find strong evidence of bad faith in its actions. Instead, it appears that the updated statement of damages served as a reminder for Basco to include the Contractor Parties.

The case is currently in the discovery phase, with the trial scheduled for July 7, 2027. (Reply, p. 4:9-10.) No showing of prejudice has been made. Plaintiff only asserts that "[i]t is entirely improper and prejudicial to add a cross-complaint premised on facts [Basco] has possessed for over a year." (Opp., p. 4:12-13.) However, Plaintiff fails to clarify how the addition of the cross-complaint would cause any actual prejudice. Consequently, granting leave at this stage will not result in a material delay of the proceedings or substantially increase the burdens associated with litigation.

Additionally, judicial economy supports the resolution of all related claims within a single proceeding.

Accordingly, the Court GRANTS Basco's motion for leave to file a cross-complaint.

ORDERS

1) Defendant and Proposed Cross-Complainant Basco Manufacturing Co.'s Motion for Leave to File Cross-Complaint is GRANTED.

2) Basco is ordered to provide notice of this Court's ruling.

IT IS SO ORDERED.

DATED: June 30, 2026

Tamara
Hall

Judge
of the Superior Court